

Instructor: Date:

Learner: Regional Branch:

Program: Center:

CONTENT

- Let's Start! • Let's Explore! • Let's Practice! • Extension Activity • Target Words • Learning Points



Let's Start!

Deliverables in an IT procurement



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Ask your partner:

- What are the products you would expect from a software agreement?
- Do you know what legal warranties you can have if any promised product is not given at the end of a project?

Can Do Statements:

- I can say what deliverables in a contract are and their importance.
- I can talk about the importance of defining the deliverables in an IT contract.
- I can talk about the things to do in case deliverables do not fulfill the requirements established.





Let's Explore!

The following are the most important aspects to take into account when talking about deliverables in an IT procurement.



Instructions: Read the text below.

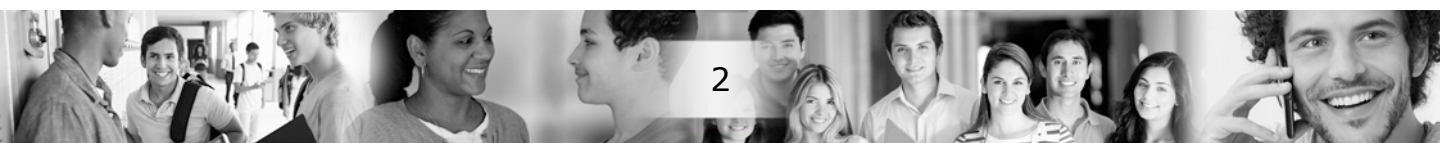
Deliverables in an IT Procurement

Even though it may sound simple to the average customer, some supplier contracts are purposely imprecise on what should be delivered. The truth isn't as clear-cut as one might expect. Reliable supplier software licenses don't usually contain a warranty that the software will work in accordance with specifications and don't provide any functional warranties whatsoever. In the same way, supplier services agreements are usually more based on a consulting arrangement than on outcomes.

Since software is the usual deliverable in an IT procurement, its functionality should be clearly set out in a schedule within the contract. Services being provided should be described just as clearly as the functionality since any kind of failure in this sense will result in everything becoming "additional service" for additional fees. If it is the case of ongoing services, particular service levels ought to be included for tangible outputs of the service. You may also want to consider as deliverable a service credit or rebate concept both to drive supplier commitment and to obtain easier access to compensation if services are not provided in conformity with the agreement.

Most IT projects take time to be undertaken and suppliers do not like being responsible for timeframes. It is extremely important that your agreement includes a clear project plan with elemental main points for the supplier to meet, and having a schedule is a good option to avoid difficulties. Liquidated damages being payable may also be taken into account in case the milestones in the contract are not met.

In order to prevent negative outcomes when a deliverable does not meet the expected specifications, it is highly recommended to obtain a right to perform acceptance testing of the solution and obtain a compensation.





Let's Practice!

The Importance of Defining the Deliverables in an IT Contract

Instructions: Complete the sentences by writing its corresponding word. Use capital letter where necessary. Use: compensation rather than / concept than other processes / as clear as / as clear-cut as.

Since software is the usual deliverable in an IT procurement, its functionality should be _____ setting a schedule within the contract. The services that are being provided should be described just _____ the functionality since the failure in this sense will result in everything becoming "additional service" for additional fees. You may also want to consider delivering a service credit and rebate _____, because we must obtain easier access to _____ not provide conformity in the agreement.



Let's Practice!

Facts About Deliverables

Instructions: Select the correct answer to complete the sentences.

1. Supplier services agreements are usually _____ on a consulting arrangement than on outcomes.
 - a. based in
 - b. based
 - c. as basic as
2. The truth isn't _____ one might expect
 - a. as clear-cut as
 - b. more than clear
 - c. clearer
3. The purpose is to obtain _____ access to compensation.
 - a. the most difficult
 - b. easier
 - c. as easy as
4. Suppliers are more _____ about other aspects of the contract than about frame times.
 - a. relaxed
 - b. concerned
 - c. as concerned as
5. Functional warranties are _____ a project plan in a license software agreement.
 - a. as relevant as
 - b. less relevant
 - c. the most important



Extension Activity

Tips on IT Procurement

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for information about deliverables.
- Write an essay talking about its importance.
- Share your work with your partner.

Self-Assessment

Yes

No

- I look for information about deliverables
- I write an essay talking about its importance
- I share my work with my partner.

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Target Words

- **rebate** (noun): return of a part of a purchase price by the provider to a customer.
e.g. You may also want to consider as deliverable a service credit or rebate concept both to drive supplier commitment and to obtain easier access to compensation if services are not provided in conformity with the agreement.
- **set out** (phrasal verb): to lay out; to set systematically.
e.g. Since software is the usual deliverable in an IT procurement, its functionality should be clearly set out in a schedule within the contract.
- **tangible output** (noun): a product that has palpable form.
e.g. If it is the case of ongoing services, particular service levels ought to be included for tangible outputs of the service.
- **clear-cut** (adjective): very clear, without any doubt or uncertainty.
e.g. The truth isn't as clear-cut as one might expect.
- **deliverable** (noun): tangible or intangible object that is the result of a project and is contemplated to be given to a customer.
e.g. Since software is the usual deliverable in an IT procurement, its functionality should be clearly set out in a schedule within the contract.
- **functionality warranty** (noun): legally binding assurance that a good or service is going to work properly.
e.g. Reliable supplier software licenses don't usually contain a warranty that the software will work in accordance with specifications and don't provide any functional warranties whatsoever.



Learning Points

Comparisons with **as ... as** and **not as ... as** and other comparative forms

There are different ways to establish **comparisons** between two items. The most common ones are to use the **comparative form** of the adjective (-er or more) or to use the structure **as + adjective + as** to establish that two things being compared share the same characteristics.

Remember that to turn one-syllable adjectives and two-syllables (*ending in -y, or -er*) into the **comparative form** you need to add -er:

*An agreement makes things **easier** when defining the supplier's responsibilities.*

For adjectives with two or more syllables you need to include **more** before the adjective:

*Suppliers are **more concerned** about other aspects of the contract than about timeframes.*

To compare equal attributes you can use the structure **as+ adjective + as**:

*Functional warranties are **as relevant as** a project plan in a license software agreement.*

Examples

- *The truth isn't **as clear-cut as** one might expect.*
- *Services being provided should be described **just as clearly as** the functionality.*
- *You may also want to consider **as deliverable** a service credit or rebate concept both to drive supplier behavior and to obtain **easier** access to compensation if services are not provided in conformity with the agreement.*

Basics on Understanding Deliverables

A **deliverable** is understood as an output of human work contributed by a developer to a client.

Once a project is completed, all the quantifiable goods resulting from this activity are known as **deliverables**. **Deliverables** can be software programs or a system that is part of a larger software package. They may or may not comprehend everything that should be completed by the end of a project.

Some examples of deliverables are *project plans, user manuals, executable code modules, or code listings*.

